

that “plaintiff need not satisfy class action requirements” to assert a PAGA claim). Moreover, because PAGA claim is “a statutory action for penalties brought as a proxy for the State,” “there is no need to protect absent employees’ due process rights[.]” *Williams, supra*, 3 Cal.5th at 546. “PAGA does not make other potentially aggrieved employees parties” to the action and no “due process concerns arise under PAGA because absent employees do not own a personal claim for PAGA civil penalties and whatever personal claims the absent employees might have for relief are not at stake.” *Id.* at 546-47. 17 Accordingly, “[u]nnamed employees need not be given notice of the PAGA claim, nor do they have the ability to opt-out of the representative PAGA claim.”

However, since this matter proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

After review of the proposed settlement, the applicable statutory and decisional authorities, the Court finds good cause to grant this motion. Good cause appearing, the Court makes the following orders.

Ruling

1. Plaintiff’s Motion for Order Approving Settlement Pursuant to the California Labor Code Private Attorney General Act is granted.
2. The Court will execute the proposed order lodged on December 5, 2026, and will request that the Clerk of the Court attach this ruling to the proposed order.
3. The Court orders Counsel to schedule a compliance hearing no later than six months from the date of this hearing. Counsel is ordered to file a compliance statement no later than five (5) court days before the hearing. The Court may vacate the hearing upon review of the compliance statement.
4. No appearance is required on July 22, 2026.

13. 9:00 AM CASE NUMBER: C23-03161

CASE NAME: ALISCHA WILSON VS. INTEX RECREATION CORP.,

***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS AND 2ND AMENDED COMPLAINT
FILED BY: INTEX MARKETING LTD.**

TENTATIVE RULING:

The hearing on this motion is **continued** to January 20, 2027 at 9:00 a.m. in Department 16 by stipulation of the parties. No appearance is required on July 22, 2026.